

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 18, 2026
8:30 a.m./1:30 p.m.

19. JUSTIN SIMARRO V. YAJAIRA SIMARRO

PFL20200099

On November 6, 2025, Respondent filed a Request for Order (RFO) seeking an order for Petitioner to pay credit card debts.

On November 17th, Respondent filed an Order to Show Cause and Affidavit for Contempt (OSC).

Respondent filed another RFO on January 16, 2026.

On February 13, 2026, Respondent filed a Proof of Service indicating service of an “FL300, ex parte” and an “FL300.” There are currently three RFOs pending before the court and the Proof of Service does not specify which one was served. Additionally, the Notice of Tentative Ruling was not served, nor was a blank Responsive Declaration to Request for Order. Without a properly completed Proof of Service the matter cannot be heard

According to the Proof of Service, the “FL410” was personally served on Petitioner.

Parties appeared for the hearing on February 26, 2026. The court arraigned Petitioner on the OSC. Petitioner requested additional time to hire counsel. The court continued the OSC for further arraignment to April 23, 2026 at 1:30 PM.

The court continued the November 6, 2025, RFO to allow Respondent time to file a corrected Proof of Service.

Respondent filed Proof of Service on April 1, 2026 showing Respondent was personally served with all the required documents.

On April 23, 2026, the court appointed the office of the Public Defender to Petitioner and continued the arraignment.

Parties are ordered to appear on the RFO.

TENTATIVE RULING #19: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 18, 2026
8:30 a.m./1:30 p.m.

20. RUBEN WILBURN V. HEATHER VOGEL

24FL0197

Petitioner filed a Request for Order (RFO) on March 26, 2026, requesting a modification of the current child custody and parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on April 23, 2026 and a review hearing on June 18, 2026. Upon review of the court file, there is no Proof of Service showing Respondent was properly served.

Only Petitioner appeared at the CCRC appointment. As such, a single parent report was filed with the court on April 23, 2026. Copies were mailed to the parties on April 27th.

Respondent has not filed a Responsive Declaration.

The court drops the matter from calendar due to the lack of proper service.

All prior orders remain in full force and effect.

TENTATIVE RULING #20: THE COURT DROPS THE MATTER FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.